

Protecting Collective Bargaining and Strengthening Dispute Resolution

Theme 1: Protecting Collective Bargaining and Strengthening Dispute Resolution

Sub- headings:

- a. Transparency and Accountability amongst Parties within the PSCBC.
- b. Capacitation of Negotiators.
- c. Implementation of Negotiated and Signed Collective Agreements.
- d. Convene the public sector summit in the 2026/2027 Financial Year.
- e. Protection of Collective Bargaining in the Digital Era.
- f. Strengthening Dispute Resolution

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Legislative Framework:

- ✓ Constitution of the Republic of South Africa,
- ✓ Public Service Coordinating Bargaining Council (PSCBC) constitution,
- ✓ ILO conventions on collective bargaining,
- ✓ Public Service Act No 103 of 1994, as amended,
- ✓ Public Service Regulations,
- ✓ Labour Relations Act No 66 of 1995, as amended,
- ✓ Any relevant statutes.

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Why Collective Bargaining Matters:

- ✓ Provides a unified voice for employees
- ✓ Secures better working conditions and safety standards
- ✓ Offers job security through negotiated agreements

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a. Transparency and Accountability Amongst Parties within the PSCBC

- ✓ Adherence by parties to relevant statutes applicable to collective bargaining.
- ✓ Parties to have a buy in, in reviewing the PSCBC constitution to allow for centralised collective bargaining.
- ✓ To ensure the consistent protection and the entrenchment of centralised collective bargaining processes.
- ✓ Adherence by parties to the PSCBC Resolution 2 of 2024, amendment to Resolution 3 of 2017 – Negotiation Protocol Agreement – Wage Negotiation Process.

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a. Transparency and Accountability amongst Parties within the PSCBC...cont

- ✓ Putting in place a negotiations timetable in addressing normal collective bargaining processes in the PSCBC (allowing for proactive collective bargaining processes).
- ✓ Ensure sustainable negotiation teams are established by both the employer and organised labour, in avoidance of continued turnover within the PSCBC.
- ✓ Improved dissemination of information by parties in the PSCBC in ensuring good faith collective bargaining processes.
- ✓ Synergise central collective bargaining (adherence by sector council to the PSCBC norms and standards in allowing for centralised collective bargaining).

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b. Capacitation of Negotiators

- ✓ Continuous training and development of negotiators.
- ✓ Development of a skills transfer policy for negotiators in the PSCBC.
- ✓ There is a need to upskill negotiators in the PSCBC through the creation a second layer of negotiators to prepare for the future.
- ✓ Building sufficient technical support to parties to the PSCBC in dealing with collective bargaining issues (Researchers, Economists, and Financial Management for Non- Financial Personnel courses to be provided to negotiators for basic understanding of government budgetary processes)
- ✓ Cascading of International benchmarking practices to the level of council members.

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c. Implementation of Collective Agreements

- ✓ Continuous audit of signed collective agreements in the PSCBC.
- ✓ Continued capacitation of parties (national and provincial chamber level) on the PSCBC Resolution 3 of 2023 by parties to the PSCBC in ensuring the consistent implementation of signed collective agreements.
- ✓ Adherence by parties to the PSCBC Resolution 3 of 2023 to allow for correct implementation of signed collective agreements (clause 4 of Resolution 3 of 2023).
- ✓ Strengthening of the PSCBC monitoring and evaluation unit to allow for proper tracking of signed collective agreements.

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c. Implementation of Collective Agreements

- ✓ The PSCBC to conduct research on current and emerging trends impacting collective bargaining processes.
- ✓ Continued capacitation of parties (national and provincial chamber level) on the PSCBC Resolution 3 of 2023 by parties to the PSCBC in ensuring the consistent implementation of signed collective agreements.
- ✓ Adherence by parties to the PSCBC Resolution 3 of 2023 to allow for correct implementation of signed collective agreements (clause 4 of Resolution 3 of 2023).
- ✓ Strengthening of the PSCBC monitoring and evaluation unit to allow for proper tracking of signed collective agreements.

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d. Convene the Public Sector Summit in the 2026/27 Financial Year(FY)

- ✓ The PSCBC to convene the public sector summit in the 2026/27 FY.
- ✓ Part of the recommendations by the collective bargaining workstream, was for the public summit to be convened in the 2026/27 FY, and for the summit to include and have pre-engagements with the following stakeholders:
 - The three (3) spheres of government
 - State Agencies
 - State Entities
 - Non-commercial parastatals
- ✓ Convening the 2026/27 public sector summit would allow for parties in the PSCBC to continue with work in line with the resolutions taken at the 2022 public sector summit and collective bargaining structures in the PSCBC.

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e. Protection of Collective Bargaining in the Digital Era

- ✓ The PSCBC to commission a study on the impact that digitisation has on collective bargaining processes.
- ✓ With the increased change in workplace settings being more remote and hybrid, parties to the PSCBC need to adjust to how collective bargaining processes are undertaken.
- ✓ Data driven research by the PSCBC will provide outcomes and recommendations on how Council should be forging ahead with the digital reforms on collective bargaining.
- ✓ The PSCBC should establish a task team that will look into modernisation of collective bargaining.

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e. Strengthening Dispute Resolution

- ✓ Expand the use of digital platforms, e.g., the use of virtual conciliations and arbitrations, the PSCBC e-referral system, etc.
- ✓ Provide training for negotiators, mediators, and arbitrators to strengthen their skills in dispute resolution.
- ✓ Enhance mechanisms for enforcing collective agreements and awards in building trust in the system.
- ✓ Simplify procedures to reduce delays.



Thank you